

15. *San Bernardino Co. Transp. Authority v. Mahdavi, et al*, CIVSB2203375
Attorney Morris's Motion to be Relieved as Attorney for Defendant Rassoul Mahdavi
9/22/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion relating to representation of Defendant Rassoul Mahdavi, Trustee of the Family Trust of Rassoul Mahdavi. The motion is supported by a declaration establishing an actual conflict of interest and breakdown in communication constituting good cause. (Morris Decl.) The Court would also order the at-issue Defendant to appear before the Court at the next OSC re representation scheduled for October 6, 2026 at 8:30 AM and inform the Court about the status of representation and defense of the case. The relief is not effective until service of the ruling has been effectuated and proof of service has been filed.

16. *Raggio v. Kelly's Market, et al*, Case No. CIVSB2601306
Defendant's Motion for Judgment on the Pleadings
9/22/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Objections: The Court would find Defendant's objections to the Rivera declaration **MOOT**.

As to the Request for Judicial Notice: The Court would **GRANT** notice of measurement conversion of 3mm to 0.11811 inches, as not being reasonably subject to dispute. However, the Court would **DENY** as to the internet search results regarding measurement conversion and thickness of a quarter.

As to the Motion: The Court would **GRANT**, with thirty (30) days' leave to amend.

Case Summary

This is a slip-and-fall personal injury case. On November 22, 2024, Plaintiff tripped and fell over exposed metal bolts protruding approximately three millimeters from the concrete sidewalk in front of Defendant's store entrance, adjacent to the outdoor seating area. As such, Plaintiff filed suit on January 14, 2026, alleging (1) premises liability and (2) general negligence.

Summary of the Law

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the defendant, then a motion for judgment on the pleading (JOP) is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438(c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438(d).)

Analysis

Defendant Market contends that the Complaint does not state facts sufficient to constitute a cause of action against it. (Code Civ. Proc., § 438(c)(1)(B)(ii).) The chief argument concerns Plaintiff's allegation

that exposed metal bolts protruded approximately 3 millimeters from the sidewalk. Defendant argues this defect is trivial, too small, and too commonplace to constitute a substantial injury risk under California premises liability law. Therefore, Plaintiff cannot establish the existence of a dangerous condition as a matter of law, which means her pleading fails to state facts sufficient to constitute a cause of action such that judgment on the pleadings should be granted for Defendant.

There are several cases cited, the most salient being *Whiting v. National City*. In *Whiting*, the plaintiff sued a city for injuries from a fall when she caught the toe of her shoe on the upraised edge of a cement square in a sidewalk. (*Whiting v. Nat'l City* (1937) 9 Cal.2d 163, 164.) The *Whiting* court specifically stated: "It is a matter of common knowledge that it is impossible to maintain a sidewalk in a perfect condition." (*Whiting, supra*, 9 Cal.2d at p. 165.) "A municipality cannot be expected to maintain the surface of its sidewalks free from all inequalities and from every possible obstruction to travel. Minor defects due to continued use, or action of the elements, or other cause, will not necessarily make the city liable for injuries caused thereby." (*Ibid.*) "What constitutes a minor defect is not always a mere question of fact. If the rule were otherwise the city could be held liable upon a showing of a trivial defect." (*Ibid.*)

Here, with judicial notice of the 3 mm conversion to 0.11811 inches, there can be no reasonable dispute that the resulting fraction is 1/8 inch, which is even lower than the 1/2-inch minor defect in *Barrett v. City of Claremont* (1953) 41 Cal.2d 70, 74. The *Barrett* court concluded: "From the minor nature of the defect here concerned it must be concluded, as a matter of law, that no injury would be sustained by one exercising reasonable care in the use of the sidewalk." (*Barrett, supra*, 41 Cal.2d at p. 75.) Thus, the Court would likewise consider the currently-pleaded irregularity as being insufficient to support the claims.

17. *South Colton Families First, et al, v. City of Colton, et al*, Case No. CIVSB2607256
Demurrer of Real Party in Interest IDI Agua Mansa, LLC
9/22/26, 9:00 a.m., Dept. S-17

Continued from September 1, 2026, to allow satisfaction of the meet-and-confer requirement

Tentative Rulings

As to Requests for Judicial Notice: The Court would **GRANT** both Real Party's requests, as well as Petitioners' requests.

As to the Demurrer: The Court would **OVERRULE**.

Case Summary

This is a California Environmental Quality Act (CEQA) matter. The petition concerns Colton's approval of the construction of two warehouses, known as the Agua Mansa Logistics Center (the "Project"). The first warehouse is a typical distribution center, approximately 50-feet high and 450,000 square feet at its base. The second is a 130-foot-tall, "high cube" robotic freezer. (Pet, ¶1.)

Generally, Petitioners allege Colton violates CEQA by failing to adequately analyze all of the Project's potentially significant environmental impacts or provide evidence to support conclusions reached in the